



CHAPTER 11

An Act to provide for extending the upper age-limit for liability to national service in the case of persons absent from Great Britain in the last year of their said liability, and for purposes connected with the matter aforesaid.
[29th March, 1955]

BE it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) Where a person has attained the upper age-limit for Application liability to national service, but had not attained it before the of Act. first day of January, nineteen hundred and fifty-five, and either—

- (a) he was immediately before he attained it subject to registration, or
- (b) he was then not subject to registration by reason only of his not being ordinarily resident in Great Britain, but had previously been ordinarily resident therein at some time after attaining the age of seventeen years and eight months,

then if during the year ending with his attaining the said upper age-limit he was absent from Great Britain for a period of not less than twenty-eight days, or for periods which in the aggregate amounted to not less than twenty-eight days, this Act shall, subject as hereinafter provided, apply to him.

(2) This Act shall not apply—

- (a) to a person who since attaining the upper age-limit for liability to national service has become a person of any of the descriptions specified in the First Schedule to the principal Act (which specifies certain classes of persons not liable to be called up for service);

- (b) to a person who, under the provisions of any Act in force in any part of Her Majesty's dominions outside Great Britain, is a national or citizen of that part within the meaning of that Act, or is domiciled in any such part of Her Majesty's dominions or in a British protectorate, a mandated territory, a trust territory or any other country or territory being a country or territory under Her Majesty's protection or suzerainty;
- (c) to a person liable to be called upon to serve by virtue of section twenty-three of the principal Act (which imposes a liability to complete interrupted service).

Power of
Minister to
extend upper
age-limit of
liability.

2.—(1) The Minister may cause a notice under section eight of the principal Act (which relates to medical examination) to be served on a person to whom this Act applies who has not attained the age of thirty-six years, notwithstanding his not being subject to registration; and if such a notice is served the principal Act shall thereafter apply in his case—

- (a) as if for references to the upper age-limit for liability to national service there were substituted references to the age of thirty-six years;
- (b) as if so much of that Act as makes it a condition of being liable to be called up for service that a person is ordinarily resident in Great Britain were omitted.

(2) A notice served by virtue of the last foregoing subsection shall be accompanied by a document stating that it is served by virtue of this Act and containing such information as appears to the Minister expedient for informing the person on whom it is served of the effect of this Act.

Expenses.

3. There shall be defrayed out of moneys provided by Parliament any increase attributable to the provisions of this Act in the sums payable out of such moneys under section fifty-five of the principal Act.

Short title,
citation,
interpretation
and extent.

4.—(1) This Act may be cited as the National Service Act, 1955, and the National Service Acts, 1948 to 1950, and this Act may be cited together as the National Service Acts, 1948 to 1955.

(2) In this Act—

“the Minister” means the Minister of Labour and National Service;

“the principal Act” means the National Service Act, 1948;

“the upper age-limit for liability to national service” means the age of twenty-six years, except that where under the provisions of the National Service Acts, 1948 to 1950,

11 & 12 Geo. 6.
c. 64.

relating to medical practitioners and dentists, or to postponement certificates, a later age is substituted for the age of twenty-six years the said expression means that later age;

and other expressions used in the principal Act and this Act have the same meaning in this Act as they have in the principal Act, and in particular "Her Majesty's dominions" has the same meaning as if this Act had been passed immediately after the principal Act.

(3) Section fifty-eight of the principal Act (which enables that Act to be extended by Order in Council to the Isle of Man) shall apply in relation to this Act as it applies in relation to that Act.

PRINTED BY JOHN ROUGHTON SIMPSON, C.B.

Controller of Her Majesty's Stationery Office and Queen's Printer of Acts of Parliament